Article No.	Subject Matter
88.	Rights of Ministers as respects the Houses

[1]This Article was amended by the 42nd Constitutional Amendment Act of 1976 to the effect that the president shall, in the exercise of his functions, act in accordance with the advice rendered by the council of ministers. The 44th Constitutional Amendment Act of 1978 further added a proviso to this article to the effect that the president may require the council of ministers to reconsider such advice and the president shall act in accordance with the advice tendered after such reconsideration.

[1a]*U.N.R. Rao* vs. *Indira Gandhi* (1971).

[1b]*Shamsher Singh* vs. *State of Punjab* (1974).

[2]The Salaries and Allowances of Ministers Act, 1952, has been passed for this purpose.

[2a]The Salaries and Allowances of Ministers (Amendment) Act, 2001.

[3]Each minister need not resign separately; the resignation of the prime minister amounts to the resignation of the entire council of ministers.

[4]*Constituent Assembly Debates*, Volume VIII, p. 1160.

[5]Study Report on Parliamentary Secretary, Ministry of Parliamentary Affairs, 1997, p. 3 and p. 9.

[6]Avasthi and Avasthi, *Indian Administration*, Laksmi Narain Agarwal, First Edition, 1993, p. 79.